

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tileyah Williams	Team: Squad #03	CCRB Case #: 202000186	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 08/13/2019 6:00 AM	Location of Incident: § 87(2)(b) en route to the 120th Precinct stationhouse	18 Mo. SOL 9/30/2021	Precinct: 120
Date/Time CV Reported Mon, 01/06/2020 4:30 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 01/06/2020 4:30 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			E S U
2. DTS Rudy Anzalone	05617	945472	INT CIS
3. An officer			E S U
4. POM Kenneth Richardson	23505	962728	120 PCT
5. SGT Felix Concepcion	00742	924845	INT CIS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Asmir Dragovic	03271	956612	I.A.B.
2. POF Cara Gambardella	01915	944340	120 PCT
3. DT3 Mohsin Mohsin	00332	952026	NARCBSI
4. CPT Anthony Bentivegna	00000	878931	PBSI
5. POM Michael Fasano	00410	963510	120 PCT
6. POF Marina Fotey	18968	963997	120 PCT
7. DT3 Brian Festo	01247	953857	NARCBSI
8. SGT Craig Sikorski	02196	949913	009 PCT
9. DTS Francisco Allende	3957	944318	ESS 05
10. DTS Christophe Chiaromonte	05492	925070	ESS 05
11. DTS Ralph Stallone	07793	920867	ESS 05
12. DTS Robert Sullivan	3096	951311	ESS 05
13. DTS Shawn Mclaughlin	07640	920589	ESS 05
14. POM Lukasz Kusibab	16874	950710	C S O
15. LT Ali Javed	00000	947780	075 PCT
16. DTS Brian Becker	2923	948003	ESS 10
17. DTS Theodore Peters	3058	946113	ESS 10
18. DTS Anthony Rivelli	4676	927416	E S U

Officer(s)	Allegation	Investigator Recommendation
A . DTS Rudy Anzalone	Abuse: Detective Rudy Anzalone entered § 87(2)(b) in Staten Island.	A . Exonerated
B . Officers	Discourtesy: At § 87(2)(b) in Staten Island, officers spoke discourteously to § 87(2)(b)	B . Exonerated
C . An officer	Discourtesy: At § 87(2)(b) in Staten Island, an officer spoke discourteously to § 87(2)(b)	C . Exonerated
D . Officers	Force: At § 87(2)(b) in Staten Island, officers pointed their guns at § 87(2)(b)	D . Exonerated
E . DTS Rudy Anzalone	Abuse: Detective Rudy Anzalone searched § 87(2)(b) in Staten Island.	E . Exonerated
F . Officers	Abuse: At § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property	F . Unsubstantiated
G . Officers	Abuse: At § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property	G . Unsubstantiated
H . Officers	Abuse: At § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property	H . Unsubstantiated
I . SGT Felix Concepcion	Abuse: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion threatened § 87(2)(b) with the arrest of § 87(2)(b)	I . Exonerated
J . SGT Felix Concepcion	Abuse: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion threatened § 87(2)(b) with the arrest of § 87(2)(b)	J . Exonerated
K . SGT Felix Concepcion	Abuse: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion threatened § 87(2)(b) with the arrest of § 87(2)(b)	K . Exonerated
L . SGT Felix Concepcion	Abuse: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion threatened § 87(2)(b) with the arrest of individuals.	L . Exonerated
M . SGT Felix Concepcion	Abuse: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion threatened § 87(2)(b) with the arrest of § 87(2)(b)	M . Exonerated
N . SGT Felix Concepcion	Discourtesy: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion spoke discourteously to an individual.	N . Substantiated
O . POM Kenneth Richardson	Discourtesy: En route to the 120th Precinct stationhouse, Police Officer Kenneth Richardson spoke discourteously to § 87(2)(b)	O . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 6, 2020, § 87(2)(b) filed this complaint on behalf of herself, her children, § 87(2)(b), § 87(2)(b), § 87(2)(b), her friend who she identified as § 87(2)(b) her goddaughter who she identified as § 87(2)(b) and § 87(2)(b)'s boyfriend identified by § 87(2)(b) as § 87(2)(b) in-person at the CCRB. This case was originally assigned to Investigator Magdalena Azmitia and was reassigned to the undersigned investigator.

On August 13, 2019, at approximately 6:00 a.m., at least 11 officers, including Field Intelligence Officer (FIO) Detective Rudy Anzalone and FIO Sergeant Felix Concepcion of the Intelligence Criminal Section; Police Officers Kenneth Richardson, Cara Gambardella, Michael Fasano, and Marina Fotey of the 120th Precinct; Detectives Mohsin Mohsin and Brian Festo of the Staten Island Gang Squad, who are now assigned to Narcotics Borough of Staten Island; and Craig Sikorski of the Staten Island Gang Squad, who is now assigned to the 9th Precinct, arrived at § 87(2)(b)'s home at § 87(2)(b) in Staten Island to execute a search warrant obtained by Detective Anzalone. Detective Robert Mirfield, Detective Robert Sullivan, Detective Ralph Stallone, Detective Christophe Chiaromonte, Detective Francisco Allende, Detective Anthony Rivelli, Detective Brian Becker, Detective Theodore Peters and PO Lukasz Kusibab of the Emergency Services Unit (ESU) broke down the front door and entered the residence with their guns drawn (**Allegation A: Abuse of Authority, exonerated**). The ESU officers told § 87(2)(b) to, “Get the fuck down,” “Get the fuck on your knees,” “Get the fuck back,” “Get on the fucking floor,” “Get the fuck on the ground,” and told § 87(2)(b) to, “Shut the fuck up,” or statements similar in nature (**Allegations B and C: Discourtesy, exonerated**). ESU officers also pointed their guns at § 87(2)(b)'s chest as they entered the home (**Allegation D: Force, exonerated**). The ESU officers then handcuffed all but one resident and searched the residence (**Allegation E: Abuse of Authority, exonerated**). During the search, the officers allegedly damaged a bedroom door frame, a headboard, dresser drawers and bed planks in § 87(2)(b)'s home (**Allegations F-H: Abuse of Authority, unsubstantiated**).

At one point during the search, Sergeant. Concepcion told § 87(2)(b) “Now if I do find a gun, everyone is going to jail” (**Allegations I-M: Abuse of Authority, exonerated**). Sergeant. Concepcion also told § 87(2)(b) “If you need to do something, if you need to stretch your ass, you just let me know” (**Allegation N: Discourtesy, substantiated**). Officers found one round of ammunition and an unspecified amount of marijuana in § 87(2)(b)'s room. § 87(2)(b) was the only person who was arrested during this incident. He was charged § 87(2)(b). § 87(2)(b) PO Fasano and PO Richardson transported § 87(2)(b) to the 120th Precinct stationhouse. On their way, § 87(2)(b) asked the officers if they knew how many times he was transported to the stationhouse. PO Richardson then responded, “For what, for the same shit?” (**Allegation O: Discourtesy, substantiated**) § 87(2)(g), § 87(4-b)

This investigation obtained body-worn camera (BWC) footage from Det. Anzalone, PO Dragovic and PO Richardson (**01, 02, 03 Board Review**). The investigation also obtained video surveillance from the doorbell camera at the location (**04 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Rudy Anzalone entered § 87(2)(b) in Staten Island.

Allegation (B) Discourtesy: At § 87(2)(b) in Staten Island, officers spoke discourteously to § 87(2)(b)

Allegation (C) Discourtesy: At § 87(2)(b) in Staten Island, an officer spoke discourteously to § 87(2)(b)

Allegation (D) Force: At § 87(2)(b) in Staten Island, officers pointed their guns at § 87(2)(b)

Allegation (E) Abuse of Authority: Detective Rudy Anzalone searched § 87(2)(b) in Staten Island.

It is undisputed that on August 13, 2019, at approximately 6:00 a.m., ESU officers entered § 87(2)(b) in Staten Island pursuant to a no-knock Kings County search warrant # § 87(2)(b) issued by the § 87(2)(b). It is undisputed that ESU officers forcibly entered the residence damaging the front door of the house; had their guns drawn; spoke discourteously towards some members of the household, handcuffed all but two residents and then left. Finally, it is undisputed that PO Dragovic, Det. Anzalone and Det. Mohsin entered the location when ESU officers left and with assistance from 120th Precinct officers and Gang Squad officers, searched § 87(2)(b) § 87(2)(g)

§ 87(2)(b) is a three-story private house owned by § 87(2)(b) § 87(2)(b) resides there with her daughter § 87(2)(b) her sons § 87(2)(b) and § 87(2)(b) her goddaughter § 87(2)(b) her goddaughter's boyfriend § 87(2)(b) and two pit bull dogs. § 87(2)(b)'s bedroom is on the third level of the house along with the room that § 87(2)(b) used, § 87(2)(b) and § 87(2)(b)'s room and § 87(2)(b)'s room. § 87(2)(b)'s bedroom is on the second level of the house and § 87(2)(b)'s room is in the basement. During the incident all the residents of this house were present. In addition, § 87(2)(b)'s friend, who she identified as § 87(2)(b) and § 87(2)(b)'s youngest son § 87(2)(b) who do not normally reside in the house were present.

§ 87(2)(b) testified that as she was in her home getting ready for work, she saw officers in riot gear break in her front door and enter her home while yelling, "Get the fuck down" (05 Board Review). The officers then searched her home.

In her statement to the CCRB, § 87(2)(b) stated that she was asleep in her room with a family friend, known to the investigation, as § 87(2)(b) when she was awakened by a bang and then heard someone shouting, "Get the fuck back," and "Get the fuck on your knees" (06 Board Review). § 87(2)(b) initially thought these words were coming from a television show and did not immediately look to see what was going on. She then saw officers place handcuffs on § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) and look around § 87(2)(b)'s room. She was not placed in handcuffs. She later noticed that officers handcuffed all the of the residents beside her and that the officers had moved several items of furniture in her home.

§ 87(2)(b) testified that he was awakened by some commotion coming from upstairs inside of his house (**07 Board Review**). When he walked upstairs, he found “warrant squad” officers pointing guns at his chest, while another officer held a riot shield telling him to stay calm, put his hands up and to “shut the fuck up.” He testified that officers searched the home and that he later saw that the front door of the house appeared dented and could not close without a jury-rigged padlock and latch.

§ 87(2)(b) refused to provide the full names for § 87(2)(b) and § 87(2)(b) therefore, the investigation could not locate their contact information. § 87(2)(b) remained incarcerated during the investigation. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Video surveillance from the doorbell camera at the location, attached to IA 61, shows that on the incident date, at 6:21 a.m., an ESU officer uses a battering ram to force entry into § 87(2)(b) (**04 Board Review**). Immediately after, approximately 13 ESU officers enter the home and one officer shouts, “Search warrant.” Some officers are holding firearms and other officers have varying tools. At eight seconds into the recording, ESU officers are heard telling residents to, “Get on the fucking floor”, “On the fucking floor”, “Get down on the ground,” and “Put your hands down”. While the ESU officers enter her home, § 87(2)(b) is heard saying, “Don’t do that, my daughter is here”.

Detective Anzalone testified that when he arrived at the location at approximately 6:00 a.m., he pointed it out to ESU officers who then forced entry into the front door. Detective Anzalone could not recall which tool they used to do this. He could not hear or see what the ESU officers did once they got into the house (**08 Board Review**). Once ESU secured the location, Detective Anzalone went into the house and searched all of the rooms on the third level, the kitchen and § 87(2)(b)’s bedroom. Detective Anzalone found one round of ammunition in § 87(2)(b)’s room.

PO Dragovic testified that when he arrived at the location at approximately 6:00 a.m., he witnessed ESU officers hit the door open and enter the location (**09 Board Review**). He could not see or hear what the officers did once they were inside the house. PO Dragovic was then instructed to search § 87(2)(b)’s room, which he did. PO Dragovic did not recall if he searched any other areas in the house.

Detective Mohsin stated that he did not recall when or who called him to notify him of the execution of the search warrant but believed that one of the FIOs, including Detective Anzalone and Sergeant Concepcion did. Detective Mohsin did not know why they called him but believed that they contacted him specifically because he knew about the location, since he arrested a resident of the location, § 87(2)(b) in the past. When he arrived at the location at approximately 6:05 a.m., he witnessed ESU officers use a breaching ram to get into the house, which caused some damage to the front door (**10 Board Review**). Detective Mohsin did not recall if he heard ESU officers give any commands as they entered the location and he did not recall hearing any officers use profanity as they entered the location.

He did not see any officers with their guns pointed as they entered the location. Detective Mohsin then entered the house and went immediately to § 87(2)(b)'s room and searched it. During this search, he found clothing items that had been worn by a shooter § 87(2)(e). Detective Mohsin did not say he was investigating that case. Detective Mohsin then “froze” the location and left the house to obtain a separate search warrant for the clothing. Detective Mohsin then returned to the house, retrieved the clothing and left. Detective Mohsin did not search any other areas in the house.

Sergeant Concepcion testified that as he arrived at the location at approximately 6:00 a.m., ESU officers were preparing to enter the house (**11 Board Review**). They then announced, “NYPD, search warrant”, broke the front door in and went into the house for a few minutes. Sergeant Concepcion heard that ESU officers were saying something but could not hear what they said. He did not recall if any officers used any profanity when entering the house and he did not see any officers pointing their firearms at anyone as they entered. ESU officers then informed Sergeant Concepcion that he could enter the house. Upon entry, Sergeant Concepcion noticed that the front door’s lock mechanism was broken from the battering ram. He then supervised officers who searched the home, including Detective Anzalone.

Richmond County search warrant § 87(2)(b) issued to Det. Anzalone by the § 87(2)(b) notes that Detective Anzalone had the authority to enter § 87(2)(b) without knocking at any time of day within ten days from the date of issuance . He was also authorized to search for and seize § 87(2)(b) firearms, ammunition and any evidence pertaining to firearms (**12 Board Review**).

Richmond County search warrant § 87(2)(b) issued by the § 87(2)(b) notes that Detective Mohsin was authorized to search and seize evidence at § 87(2)(b) in Staten Island pertaining to an incident of reckless endangerment committed on February 22, 2019, in the vicinity of § 87(2)(b) in Staten Island (**13 Board Review**).

New York State (NYS) Criminal Procedure Law (CPL) §690.50 explains that police officers are permitted to enter and search a location with a valid judge-issued warrant. (**14 Board Review**). A search warrant must be executed within ten days after the date of issuance and on any day of the week between the hours of 6:00 a.m. and 9:00 p.m., NYS CPL §690.30 (**15 Board Review**). NYS CPL §120.80 states that if an officer is authorized to enter a premise without giving notice of his authority, they may enter the premise by a breaking if necessary (**16 Board Review**). Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or prevent escape from custody, NYPD Patrol Guide Procedure 221-01 (**17 Board Review**). In all circumstances, any application or use of force must be reasonable under the circumstances. This procedure also notes that an officer’s decision to draw or display a firearm must be based on articulable belief that a potential threat of serious physical injury is imminent. The officer must secure his gun once the threat no longer exists.

Police officers are required to treat members of the public courteously and

§ 87(2)(b)'s room, he walks over to his dresser drawers (**01 Board Review**) He then pulls out the top drawer and looks around the documents in the drawer. He pushes the drawer back in. Det. Anzalone then pulls the bottom draw all the way out and places it on the floor. He then pulls out the middle drawer, which he struggles to get completely out and has to pull three times before it comes out and places it on the floor. He looks into the bottom and back of the partially empty dresser and then walks away. The footage does not show that the dresser drawers broke or that any other officer touched the dresser drawers. None of the other footage shows officers touching § 87(2)(b)'s dresser drawers. When Detective Anzalone was shown this clip of his BWC, he reiterated that he did not break the dresser drawer and stated that sometimes people will tape things to the back of dresser drawers or underneath them, so he needed to take them out (**08 Board Review**).

In IA 37, at 1:29 minutes, PO Dragovic's BWC video shows that as he, Detective Mohsin and Detective Anzalone arrive in § 87(2)(b)'s room, Detective Mohsin and Detective Anzalone lifts § 87(2)(b)'s mattress off the box spring and the video partially reveals that some of the bed planks are already broken and on the floor under the box spring (**02 Board Review**). PO Dragovic remains in this room recording and at 19:19 minutes, a full display of the bed planks reveals that only four bed planks are on the box spring. This recording does not show any officers touching the bed planks and no footage shows officers touching the bed planks. At 15:00 minutes of this recording, the BWC video shows § 87(2)(b)'s bedroom door, which did not appear to have a cracked door frame or any other damage. None of the footage shows officers touching this door or records any damage to the door. None of the footage captures § 87(2)(b)'s room.

PO Dragovic's BWC showed that when officers picked up § 87(2)(b)'s mattress, some bed planks were already broken, although it is unclear whether § 87(2)(b)'s was referring to that damage or whether further damage was inflicted. None of the officers testified to committing or seeing any other officers damage the bed planks or any other property that was alleged to be damaged. Neither § 87(2)(b), § 87(2)(b) nor § 87(2)(b) saw any officer damaging property. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegations F, G and H** be closed as *unsubstantiated*.

Allegation (I) Abuse of Authority: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion threatened § 87(2)(b) with the arrest of § 87(2)(b).

Allegation (J) Abuse of Authority: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion threatened § 87(2)(b) with the arrest of § 87(2)(b).

Allegation (K) Abuse of Authority: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion threatened § 87(2)(b) with the arrest of § 87(2)(b).

Allegation (L) Abuse of Authority: At § 87(2)(b) in Staten Island, Sergeant Felix Concepcion threatened § 87(2)(b) with the arrest of § 87(2)(b).

Allegation (M) Abuse of Authority: At § 87(2)(b) in Staten Island, Sergeant Felix

Concepcion threatened § 87(2)(b) with the arrest of individuals.

It is undisputed that Sergeant Concepcion threatened § 87(2)(b) with the arrest of § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b). The complainant and victims of this complaint did not make these allegations § 87(2)(g).

In IA 36, at 11:50 minutes, Detective Anzalone's BWC footage captures § 87(2)(b) handcuffed and sitting in the doorway of his room while officers begin searching his room. Sergeant Concepcion encourages § 87(2)(b) to tell him whether he has any weapons or drugs in the house. Sergeant Concepcion then tells § 87(2)(b) "Now, if I do find a gun, everybody is going to jail" (**01 Board Review**). He further tells § 87(2)(b) at 12:19 minutes, "Speak to us now, let us know and then you'll be on your way". § 87(2)(b) responds to Sergeant Concepcion, saying that there are no weapons or guns in his house. Both Sergeant Concepcion and § 87(2)(b) spoke in a calm tone. Neither this video nor any of the other footage shows officers asking any other residents whether there was a gun in the house and the footage does not capture residents saying anything about weapons. None of the footage captures Sergeant Concepcion asking any other residents about a gun.

Sergeant Concepcion testified that he made this statement about everyone going to jail because the search warrant included the whole house, and if no one had admitted to owning a weapon that was found in the house, he wouldn't know who it belonged to. He further stated that everyone could be arrested until he finished his investigation, to learn who the weapon belonged to and why it was in the home (**11 Board Review**).

NYPD Patrol Guide Procedure 208-01 states that officers may make an arrest for an offense or a crime where the officer has a reasonable cause to believe that the arrestee has committed the crime (**20 Board Review**). A person is guilty of criminal possession of a firearm when he or she possesses any firearm or lawfully possesses a firearm and knowingly fails to register the firearm NYS Penal Law § 265.01-b (**21 Board Review**). According to People V. Robinson 28 Misc. 3d 1051 (2010), possession of a weapon means to be in physical possession or constructive possession, with the ability to exercise control or dominion of said weapon (**22 Board Review**).

§ 87(2)(g)
It is therefore recommended that **Allegations I, J, K, L and M** be closed as *exonerated*.

Allegation (N) Discourtesy: At § 87(2)(b) in Staten Island, Sergeant Concepcion spoke discourteously to an individual.

It is undisputed that Sergeant Concepcion spoke discourteously to an individual at § 87(2)(b) in Staten Island. The complainants and victims of this complaint did not make these allegations § 87(2)(g)

In IA 37, at 15:07 minutes, PO Dragovic's BWC video shows that approximately 15 minutes after he began searching § 87(2)(b)'s room, Sergeant Concepcion walks into § 87(2)(b)'s room which is directly across the hall from § 87(2)(b)'s room. The video does not capture the inside of the room and Sergeant Concepcion can only be heard on the footage. This footage does not capture anything that was said in the room prior to Sergeant Concepcion going inside. Sergeant Concepcion then tells an individual, "If you need to do something, if you need to stretch your ass, you let me know" (02 Board Review). A female voice then laughs and says okay.

Sergeant Concepcion testified that he made this statement to mean that the residents should not fidget and if they had an itch to let him know. He used the word "ass" because it was the closest part of body to the handcuffs (11 Board Review).

§ 87(2)(b) testified that all of the residents of the home were placed in handcuffs beside herself, including § 87(2)(b) and § 87(2)(b) (06 Board Review).

The ESU report from the incident notes that all but two female residents on the second floor, in the second bedroom to the right were handcuffed (23 Board Review). The report further notes that on the second floor and from the back room, one male was handcuffed and that from the hallway one male and one female was handcuffed.

§ 87(2)(b) testified that she was the only resident who was not handcuffed but she was in the only room which had two females on the second floor. Although the ESU report implies that the only female handcuffed on the second floor was § 87(2)(b) it was not consistent with § 87(2)(b)'s testimony. Since the video did not capture the inside of the room, the investigation was unable to determine who the victim of this allegation is. The investigation was unable to contact § 87(2)(b) and § 87(2)(b) because § 87(2)(b) refused to provide their full names.

NYPD Disciplinary Case no. 2017-17005 clarifies that profane remarks made by police officers during stressful situations, or while an officer is trying to gain control of a chaotic situation, is not misconduct. (19 Board Review). However, an officer making profane remarks which do not serve the purpose of controlling a stressful a chaotic situation, is committing misconduct. NYPD Patrol Guide Procedure 200-02 states that uniformed members of service must render their services with courtesy and civility (24 Board Review). NYPD Patrol Guide Procedure 203-09 further outlines that public contact guidelines for members of service, indicates that interactions with members of the public should be conducted in a professional manner (18 Board Review).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation N** be closed as *substantiated*.

Allegation (O) Discourtesy: En route to the 120th Precinct stationhouse, Police Officer Kenneth Richardson spoke discourteously to § 87(2)(b).

It is undisputed that PO Richardson spoke discourteously to § 87(2)(b) en route to the 120th Precinct stationhouse. The complainant and victims of this complaint did not make these allegations § 87(2)(g). The investigation did not obtain a statement from § 87(2)(b) as he remained incarcerated during the investigation § 87(2)(g).

In IA 38, PO Richardson's BWC shows him assisting § 87(2)(b) into a vehicle to be transported to the 120th Precinct stationhouse. § 87(2)(b) then asks PO Richardson why he was being arrested and PO Richardson said that from what he understood it was because he had unlawful possession of marijuana. Both § 87(2)(b) and PO Richardson speak calmly and in a friendly manner. § 87(2)(b) then laughs and says that he only had, "one blunt". PO Richardson asks § 87(2)(b) if he saw him searching the house and that he was only responsible for transporting him to the stationhouse because his boss told him to. PO Richardson tells § 87(2)(b) that they would be at the stationhouse in less than five minutes and § 87(2)(b) asks if he knew how many times he has been transported to the stationhouse. At 1:50 minutes, PO Richardson responds, "For what, for the same shit?" (**03 Board Review**). PO Richardson and § 87(2)(b) spoke calmly for the full duration of the trip.

PO Richardson testified that he made that statement to mean, "for the same things" and stated that he did not mean it in a "bad way" (**25 Board Review**).

NYPD Disciplinary Case no. 2017-17005 clarifies that profane remarks made by police officers during stressful situations, or while an officer is trying to gain control of a chaotic situation, is not misconduct. (**19 Board Review**). However, an officer making profane remarks which do not serve the purpose of controlling a stressful a chaotic situation, is committing misconduct. NYPD Patrol Guide Procedure 200-02 states that uniformed members of service must render their services with courtesy and civility (**23 Board Review**). NYPD Patrol Guide Procedure 203-09 further outlines that public contact guidelines for members of service, indicates that interactions with members of the public should be conducted in a professional manner (**18 Board Review**).

§ 87(2)(g)

it is recommended that **Allegation O** be closed as *substantiated*.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the third CCRB complaint to which § 87(2)(b) has been a party (**28 Board Review**).
- This is the second complaint to which § 87(2)(b) and § 87(2)(b) have been parties (**29 Board Review**). § 87(2)(b)
- This is the sixth complaint to which § 87(2)(b) has been a party § 87(2)(b) (**30 Board Review**).
- This is the first complaint to which § 87(2)(b) has been a party (**31 Board Review**).
- The investigation was not able to determine the CCRB histories of § 87(2)(b), § 87(2)(b)

- and § 87(2)(b) because § 87(2)(b) refused to provide their full names.
- Det. Anzalone has been a member of service for 12 years and has been a subject in 13 other CCRB complaints and 14 other allegations, one of which was substantiated.
 - Case # 201702888 involved a stop allegation pled against Det. Anzalone. The Board recommended formalized training and the NYPD imposed formalized training.
 - § 87(2)(g)
 - Sergeant Concepcion has been a member of service for 20 years and has been a subject in 13 other CCRB complaints and 37 other allegations, four of which were substantiated.
 - Case # 201007137 involved two frisk allegations, one search allegation and § 87(4-b), § 87(2)(g) plead against Sergeant Concepcion. The Board recommended charges for both frisk allegations, and the NYPD imposed instruction for both allegations. The Board recommended charges for the search allegation, and the NYPD imposed instruction. § 87(4-b) § 87(2)(g)
 - § 87(2)(g)
 - PO Richardson has been a member of service for four years and this is the first complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- As of March 2, 2021, the New York City of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (**32 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [REDACTED]
- [REDACTED]

